



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

November 6, 2023

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202202968 (Incident Date: May 10, 2022) regarding Sergeant Danny Aguilar, Tax No. 941319 (DADS No. 2023-28487)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that no disciplinary action is warranted in connection with the threat of force allegation against Sergeant Danny Aguilar. It was also determined that Sergeant Aguilar will receive formalized training in connection with the failure to provide name allegation.

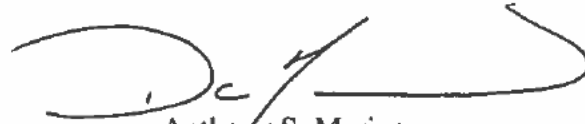
In the instant matter, Sergeant Aguilar arrived on scene where officers were investigating a vehicle that had been reported stolen as per the license plate reader. While the officers were arresting one individual, another approached the vehicle and attempted to remove their property from within it. Sergeant Aguilar and another officer immediately approached the individual removing the property and took back the items. The individual began physically resisting while demanding the return of her property. In response, Sergeant Aguilar stated twice that she was going to get "tased" if she did not comply. He un-holstered his Conducted Electrical Weapon (CEW) for a brief moment while pointing it at the ground and was able to successfully gain compliance. In addition, at some point, the mother of the two arrested individuals requested Sergeant Aguilar's name. Since Sergeant Aguilar was handling several priorities during this hectic situation, including calming the scene, a mitigated penalty to address his failure to provide his name is more appropriate.

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>

Therefore, based on the foregoing, Sergeant Aguilar will receive no disciplinary action for the alleged violation of Administrative Guide Procedure 304-06(1) (Prohibited Conduct/Threat of Force) and will receive formalized training for the alleged violation of Administrative Guide Procedure 304-11 (Compliance with New York City Right to Know Act/Failure to Provide Name).

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a large, stylized flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office